

25SMCV04202 25SMCV04202

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-08-25

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Case Number: 25SMCV04202 Hearing Date: August 25, 2026 Dept: N

TENTATIVE RULING

Defendants Malibu Sunrise Partnership and Marc Fried's Motion to Compel Plaintiff Jeffrey Salwen to Respond to Form Interrogatories, Set One is GRANTED. Plaintiff Jeffrey Salwen shall serve code-compliant responses to Defendants Malibu Sunrise Partnership and Marc Fried's Form Interrogatories, Set One, without objections, within thirty (30) days of entry of this order.

Defendants Malibu Sunrise Partnership and Marc Fried's Motion to Compel Plaintiff Jeffrey Salwen to Respond to Request for Production, Set One is GRANTED. Plaintiff Jeffrey Salwen shall serve code-compliant responses to Defendants Malibu Sunrise Partnership and Marc Fried's Request for Production, Set One, without objections, within thirty (30) days of entry of this order.

Defendants Malibu Sunrise Partnership and Marc Fried's Request for Monetary Sanctions is GRANTED in the amount of \$1,320, payable by Plaintiff Jeffrey Salwen to Defendants Malibu Sunrise Partnership and Marc Fried and defense counsel within thirty (30) days of entry of this order.

Defendants Malibu Sunrise Partnership and Marc Fried to give notice.

Defendants Malibu Sunrise Partnership and Marc Fried ("Defendants") served Plaintiff Jeffrey Salwen ("Plaintiff") with their Form Interrogatories, Set One, and Request for Production, Set One, on March 25, 2026. (Mots., Casey Decls. ¶ 2.) Responses were due on or before May 28, 2026. (Ibid.) To date, no responses have been received. (Mots., Casey Decls. ¶ 3.)

Accordingly, Defendants Malibu Sunrise Partnership and Marc Fried's Motion to Compel Plaintiff Jeffrey Salwen to Respond to Form Interrogatories, Set One is GRANTED, and Defendants Malibu Sunrise Partnership and Marc Fried's Motion to Compel Plaintiff Jeffrey Salwen to Respond to Request for Production, Set One is GRANTED. Plaintiff Jeffrey Salwen shall serve code-compliant responses to Defendants Malibu Sunrise Partnership and Marc Fried's Form Interrogatories, Set One, and Request for Production, Set One, without objections, within thirty (30) days of entry of this order.

If a motion to compel responses to interrogatories or requests for production is filed, the Court shall impose a monetary sanction against the losing party "unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., §§ 2030.290, subd. (c); 2031.300, subd. (c).) Further, "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348(a).)

Defendants request \$660 in monetary sanctions for each motion. The Court finds that monetary sanctions are proper, and the hourly rate and time spent preparing each motion and appearing at the hearing on the motions is proper. Thus, Defendants Malibu Sunrise Partnership and Marc Fried's Request for Monetary Sanctions is GRANTED in the amount of \$1,320, payable by Plaintiff Jeffrey Salwen to Defendants Malibu Sunrise Partnership and Marc Fried and defense counsel within thirty (30) days of entry of this order